

MUTUAL NON-DISCLOSURE AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Mutual Non-Disclosure Agreement ("**Agreement**") is entered into on **24 September 2026** ("**Effective Date**")

BETWEEN

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as "**MediNova**" or the "**Disclosing Party**" where applicable;

AND

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as "**SecureBridge**" or the "**Receiving Party**" where applicable.

MediNova and SecureBridge are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE

The Parties intend to explore a potential commercial and technology-development relationship concerning the design, development and possible integration of an **AI-enabled analytics module for hospital-management software**("Purpose").

In connection with the Purpose, either Party may disclose certain confidential, proprietary, technical, commercial or business information to the other Party.

The Parties therefore agree to protect such information in accordance with this Agreement.

2. DEFINITION OF CONFIDENTIAL INFORMATION

For the purposes of this Agreement, "**Confidential Information**" means any non-public information disclosed by or on behalf of a Party ("**Disclosing Party**") to the other Party ("**Receiving Party**"), whether disclosed orally, visually, electronically, digitally, in writing or in any other form, including:

2.1 Technical Information

- software architecture;
- source code and object code;
- APIs and API documentation;

- algorithms and models;
- technical specifications;
- system designs;
- product prototypes;
- databases and database structures;
- security architecture;
- technical documentation;
- development methodologies; and
- product roadmaps.

2.2 Commercial Information

- pricing and pricing strategies;
- business plans;
- financial information;
- commercial proposals;
- customer requirements;
- vendor information;
- sales strategies;
- marketing plans;
- forecasts; and
- details of existing or prospective business relationships.

2.3 Legal and Operational Information

Confidential Information may also include contracts, compliance materials, internal policies, risk assessments, regulatory strategies and other non-public operational information.

2.4 Information Derived from Confidential Information

Any notes, analyses, compilations, summaries, reports, models or other materials prepared by the Receiving Party that contain or are based substantially upon Confidential Information shall also be treated as Confidential Information.

3. CONFIDENTIALITY OBLIGATIONS

The Receiving Party shall:

- a.** keep the Confidential Information strictly confidential;
- b.** use the Confidential Information solely for the Purpose;
- c.** not disclose Confidential Information to any third party except as expressly permitted under this Agreement;
- d.** protect Confidential Information using at least the same degree of care that it uses to protect its own confidential information of similar importance, and in no event less than reasonable care;
- e.** restrict access to Confidential Information to employees, officers, professional advisers, consultants and contractors who have a legitimate need to know such information for the Purpose; and
- f.** ensure that persons receiving access to Confidential Information are subject to confidentiality obligations no less protective than those contained in this Agreement.

The Receiving Party shall remain responsible for any breach of this Agreement by persons to whom it provides access to the Confidential Information.

4. PERMITTED USE

The Receiving Party shall use Confidential Information **only for evaluating, negotiating, developing and, where mutually agreed, implementing the proposed business relationship between the Parties.**

The Receiving Party shall not:

- use Confidential Information for its own independent commercial benefit;
 - use Confidential Information to develop a competing product;
 - reverse engineer software or technology disclosed by the Disclosing Party, except where expressly authorised in writing;
 - reproduce Confidential Information except to the extent reasonably necessary for the Purpose; or
 - use Confidential Information to solicit customers or business opportunities of the Disclosing Party outside the agreed Purpose.
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5. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information shall not include information that the Receiving Party can demonstrate:

- a. was publicly available at the time of disclosure;
- b. subsequently becomes publicly available through no breach of this Agreement;
- c. was lawfully known to the Receiving Party before disclosure by the Disclosing Party;
- d. is lawfully received from a third party without breach of any confidentiality obligation; or
- e. is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

The Receiving Party shall bear the burden of demonstrating that an exclusion applies.

6. LEGALLY COMPELLED DISCLOSURE

If the Receiving Party is required by law, regulation, court order or governmental authority to disclose Confidential Information, it may make such disclosure provided that, to the extent legally permitted, it:

- a. promptly notifies the Disclosing Party;
- b. discloses only the portion of information legally required to be disclosed; and

c. reasonably cooperates with the Disclosing Party in seeking confidential treatment or other appropriate protective measures.

7. DATA SECURITY

The Receiving Party shall implement reasonable technical and organisational safeguards to protect Confidential Information against:

- unauthorised access;
- unauthorised disclosure;
- accidental destruction;
- alteration;
- loss;
- copying; or
- misuse.

Where Confidential Information is stored electronically, the Receiving Party shall maintain reasonable access controls and security measures appropriate to the nature and sensitivity of such information.

8. PERSONAL DATA

To the extent that Confidential Information contains personal data or other information protected under applicable data-protection laws, the Parties shall process such information only for lawful and agreed purposes and shall comply with applicable legal requirements.

The Parties shall not disclose or process personal data beyond the scope reasonably necessary for the Purpose.

Where required, the Parties shall execute a separate data-processing or data-sharing agreement.

9. INTELLECTUAL PROPERTY

Nothing in this Agreement shall be interpreted as:

- a. transferring ownership of any intellectual property;
- b. granting a licence to use intellectual property except as expressly necessary for the Purpose;
- c. assigning any patent, copyright, trademark, trade secret or other proprietary right; or
- d. creating an obligation to enter into any definitive commercial agreement.

Each Party shall retain ownership of its intellectual property existing before the Effective Date.

Any intellectual property created jointly or independently during a subsequent development engagement shall be governed by a separate written agreement.

10. NO REPRESENTATION OR WARRANTY

All Confidential Information is provided on an "as is" basis unless otherwise expressly agreed in writing.

The disclosure of Confidential Information shall not constitute a representation or warranty regarding its accuracy, completeness or suitability for any particular purpose.

11. RETURN OR DESTRUCTION OF INFORMATION

Upon the written request of the Disclosing Party, or upon termination of discussions between the Parties, the Receiving Party shall, subject to applicable law and legitimate record-retention requirements:

- a. return or destroy Confidential Information;
- b. delete electronic copies reasonably capable of deletion; and
- c. upon request, confirm in writing that the required return or destruction has been completed.

The Receiving Party may retain archival copies where required by law, regulation or bona fide internal compliance requirements, provided such copies remain subject to the confidentiality obligations under this Agreement.

12. TERM

This Agreement shall commence on the Effective Date and shall remain in force for **two (2) years**, unless terminated earlier by mutual written agreement.

13. SURVIVAL OF CONFIDENTIALITY OBLIGATIONS

The confidentiality and non-use obligations relating to confidential information disclosed during the term shall survive termination or expiry of this Agreement for **three (3) years**.

Notwithstanding the foregoing, information qualifying as a **trade secret** shall remain protected for so long as it continues to qualify as a trade secret under applicable law.

14. REMEDIES

The Parties acknowledge that unauthorised disclosure or misuse of Confidential Information may cause substantial harm for which monetary compensation alone may not always constitute an adequate remedy.

Accordingly, the Disclosing Party shall be entitled to seek such remedies as may be available under applicable law, including injunctive or equitable relief, subject to the jurisdiction and discretion of the competent court.

Nothing in this clause shall limit any other remedy available to a Party under applicable law.

15. NO OBLIGATION TO PROCEED

Nothing contained in this Agreement shall require either Party to:

- enter into a definitive commercial agreement;
- proceed with the proposed transaction;
- purchase or sell any product or service; or
- continue negotiations.

Either Party may discontinue discussions at any time, subject to its continuing obligations under this Agreement.

16. NO PARTNERSHIP OR AGENCY

Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, employment relationship or other legal relationship between the Parties beyond the contractual relationship expressly created by this Agreement.

Neither Party shall have authority to bind the other Party without prior written authorisation.

17. ASSIGNMENT

Neither Party shall assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party, except to a successor entity in connection with a merger, restructuring or transfer of substantially all of its business or assets relating to this Agreement.

18. NOTICES

Any notice under this Agreement shall be made in writing and delivered by hand, recognised courier or email to the authorised representatives designated by the respective Parties.

A notice shall be deemed received in accordance with the applicable method of delivery unless otherwise established by the receiving Party.

19. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the **laws of India**.

Subject to applicable law, the courts having competent jurisdiction at **Bengaluru, Karnataka** shall have jurisdiction over disputes arising out of or in connection with this Agreement.

20. DISPUTE RESOLUTION

The Parties shall first attempt to resolve any dispute through good-faith negotiations between their authorised representatives.

If the dispute cannot be resolved through negotiations within **30 days**, either Party may pursue remedies available under applicable law.

The Parties may mutually agree in writing to refer a dispute to arbitration under the **Arbitration and Conciliation Act, 1996**.

21. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties concerning the confidentiality obligations relating to the Purpose and supersedes prior discussions or understandings concerning the same subject matter.

Any amendment to this Agreement shall be valid only if made in writing and signed by authorised representatives of both Parties.

22. SEVERABILITY

If any provision of this Agreement is held to be invalid, illegal or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, where legally permissible.

The remaining provisions shall continue in full force and effect.

23. WAIVER

Failure or delay by either Party in exercising any right under this Agreement shall not constitute a waiver of that right.

A waiver shall be effective only if made expressly in writing.

24. COUNTERPARTS AND ELECTRONIC SIGNATURES

This Agreement may be executed in counterparts, each of which shall be deemed an original.

Electronic signatures and electronically executed copies may be used to the extent permitted under applicable law.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement through their duly authorised representatives.

For MediNova Technologies Private Limited

Name: _____

Designation: _____

Signature: _____

Date: _____

For SecureBridge Analytics Private Limited

Name: _____

Designation: _____

Signature: _____

Date: _____
